

## Mahendra Nath v. State of U.P. — electricity recovery citation not quashed

High Court of Judicature at Allahabad · Division Bench · 18 October 2012 · Writ-C No. 55193 of 2012 · **Writ dismissed; citation not quashed; liberty to pursue Supply Code on incorrect bills.**

### HEADNOTE

A writ to quash a citation for recovery of electricity dues of Rs. 57,495 was dismissed. The petitioner had not challenged the citation and had not produced the bills. No ground was made out to quash the citation. It remains open to take steps under the U.P. Electricity Supply Code, 2005 as to incorrectness of the bills.

### FACTUAL SUMMARY

Mahendra Nath alias Mahendra Kumar petitioned the Allahabad High Court to quash a citation dated 16 August 2012 for recovery of Rs. 57,495 as electricity dues. He said the bills were exorbitant and that he had asked for the meter to be checked. Respondent no. 3 appeared through counsel; the State respondents were represented by Standing Counsel. The citation itself was not challenged on the record, and the departmental bills were not produced.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::incorrect-bills

recovery citation; incorrect bills

#### HOLDING

A writ to quash a citation for recovery of electricity dues cannot be granted where the citation is not challenged, the bills are not on record, and no good ground is shown. The petition is dismissed, with liberty to take steps under the U.P. Electricity Supply Code, 2005 regarding incorrectness of the bills. ¶ 1

**FLAG** order invokes Supply Code 2005 on incorrect bills without numbering a clause

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE ELECTRICITY BILLS WERE INCORRECT OR EXORBITANT, AND WHETHER THE METER REQUIRED CHECKING

court reserved liberty to pursue Supply Code 2005 steps; did not decide the bill or meter on merits ¶ 1